

HOUSE No. 2376

The Commonwealth of Massachusetts

PRESENTED BY:

Nicholas A. Boldyga

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect medical freedom.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Nicholas A. Boldyga</i>	<i>3rd Hampden</i>	<i>1/17/2025</i>

HOUSE No. 2376

By Representative Boldyga of Southwick, a petition (accompanied by bill, House, No. 2376) of Nicholas A. Boldyga relative to mandating or compelling individuals to undergo medical procedures, including vaccination. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect medical freedom.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Notwithstanding any general or special law to the contrary:

2 (a) No public entity, including but not limited to state agencies, municipalities, public
3 schools, colleges, or universities, shall mandate or compel any individual to undergo any medical
4 procedure, including vaccination, by:

5 (1) Exclusion from services, facilities, benefits, or privileges, (2) Imposition of fines or
6 penalties, (3) Threat of legal action, (4) Any other form of coercion or adverse action.

7 (b) Exception for Schools. Public schools may require vaccinations for enrollment
8 provided:

9 (1) The vaccine has received full approval from the U.S. Food and Drug Administration
10 (FDA) for at least three (3) years.

11 (2) Exemptions are available and recognized for:

(i) Religious beliefs. (ii) Conscientious objections, where individuals have a sincerely held belief against the procedure.

Section 2. Restrictions on Private Entities

(a) No private entity shall require vaccination as a condition of employment unless:

(1) The vaccine has been fully approved by the FDA for at least three (3) years.

(b) Liability for Private Entities. Private entities that mandate vaccinations under conditions not meeting the criteria in Section 2(a) shall be liable in civil court for any damages or injuries directly resulting from such vaccination requirements. This liability includes:

(1) Actual damages for any injury or health deterioration caused by the vaccine. (2) Medical expenses related to such injuries. (3) Loss of employment or income if the mandate leads to termination or resignation.

Section 3. Definitions

As used in this act, the following words shall have the following meanings unless the context clearly requires otherwise:

(a) "Medical Procedure" means any act or intervention performed for the purpose of altering one's health status or physical condition, including but not limited to vaccinations, surgical procedures, or drug treatments.

(b) "Fully Approved" refers to vaccines that have received full licensure from the FDA, distinct from emergency use authorization.

Section 4. Enforcement

32 (a) The Attorney General of Massachusetts shall enforce this act and may seek injunctive
33 relief against any public or private entity violating its provisions.

34 (b) Private individuals may also bring civil actions for violations of this act, seeking
35 damages or injunctive relief.

36 Section 5. Public Education

37 The Department of Public Health shall be responsible for educating the public about their
38 rights under this act, including the availability of exemptions and the implications of vaccine
39 mandates.